

Ross on Crime

C

Character

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Character

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[3.1300] The word

The word character derives from a Greek word meaning “an instrument for marking or engraving”. It assumes predictability because character does not change, wrongly according to Kirby J in *Melbourne v The Queen* (1999) 198 CLR 1; 164 ALR 465 at 41–42 [\[106\]–\[107\]](#).

[3.1305] Evidence of good character

In *PGM v The Queen* (2006) 164 A Crim R 426 (NSW CCA) Barr J, with whom the other judges agreed, said (at 434 [\[35\]](#)):

The raising of good character requires a conscious decision on the part of the accused. It has been held that such evidence must be intentionally and deliberately adduced for the purpose of raising character before the Crown may be granted leave to cross-examine: *Gabriel v The Queen* (1997) 76 FCR 279. See also *R v Bartle* (2003) 181 FLR 1. So good character is not raised, for example, where a witness volunteers the evidence: *R v Redd* [\[1923\]](#) 1 KB 104 at 106.

Evidence of character (both good and bad) must be confined to the general reputation. A witness can speak thus, “I have known him for a number of years and have heard nothing against him”, and thereby give his personal experience of the accused's character: *R v Rowton* (1865) Le & Ca (Leigh

& Cave's Crown Cases) 520; [169 ER 1497](#); [1861-73] All ER Rep 549 (Crown Cases Reserved: 12 member court).

[3.1310] General principles on good character

In *Teeluck v State of Trinidad and Tobago* [2005] 1 WLR 2421; [2005] 2 Cr App R 378 (PC) their Lordships advised (at 2430–2431; 387–388 [33]):

- (i) When a defendant is of good character, ie has no convictions of any relevance or significance, he is entitled to the benefit of a good character direction from the judge when summing up to the jury, tailored to fit the circumstances of the case: *Thompson v The Queen* [1998] AC 811, following *R v Aziz* [1996] AC 41 and *R v Vye* [1993] 1 WLR 471.
- (ii) The direction should be given as a matter of course, not of discretion. It will have some value and will therefore be capable of having some effect in every case in which it is appropriate for such a direction to be given: *R v Fulcher* [1995] 2 Cr App R 251, 260. If it is omitted in such a case it will rarely be possible for an appellate court to say that the giving of a good character direction could not have affected the outcome of the trial: *R v Kamar* *The Times*, 14 May 1999.
- (iii) The standard direction should contain two limbs, the credibility direction, that a person of good character is more likely to be truthful than one of bad character, and the propensity direction, that he is less likely to commit a crime, especially one of the nature with which he is charged.
- (iv) Where credibility is in issue, a good character direction is always relevant: *Berry v The Queen* [1992] 2 AC 364, 381; *Barrow v The State* [1998] AC 846, 850; *Sealey v The State* (2002) 61 WIR 491, para 34.
- (v) The defendant's good character must be distinctly raised, by direct evidence from him or given on his behalf or by eliciting it in cross-examination of prosecution witnesses: *Barrow v The State* [1998] AC 846, 852, following *Thompson v The Queen* [1998] AC 811, 844. It is a necessary part of counsel's duty to his client to ensure that a good character direction is obtained where the defendant is entitled to it and likely to benefit from it. The duty of raising the issue is to be discharged by the defence, not by the judge, and if it is not raised by the defence the judge is under no duty to raise it himself: *Thompson v The Queen* [1998] AC 811.

Followed:

Singh v The State [2006] 1 WLR 146; [2005] 4 All ER 781 at [27] (PC).

Other cases

Fung v The Queen (2007) 174 A Crim R 169 at 181–182 [57]–[59] (NSW CCA).

In *De Silva v The Queen* [2013] VSCA 339 a defence appeal against conviction was permitted on the basis that the accused's good character was not led at trial.

[3.1315] Defence to raise good character

In *Gilbert v The Queen* [2006] 1 WLR 2108 (PC) the Board advised (at 2114 [21]):

It is still the general rule that it is up to defending counsel and the defendant to ensure that the judge is aware that the defendant is relying on his good character. If this rule is not adhered to, there is a danger that an unscrupulous defendant will be able to manufacture a ground of appeal based upon the failure of the judge to give the proper character direction. The fact that a defendant has no previous convictions recorded against him, does not mean that he inevitably is of good character. This is why it is good practice for the judge, where there is any doubt as to the position, to raise the matter with counsel.

The duty of the defence to raise good character of an accused (point (v)) was repeated in *Ramdhanie v State of Trinidad and Tobago* [2006] 1 WLR 796 at 802 [14] (PC).

[3.1320] Use of good character

The defence can adduce good character evidence to suggest that it is unlikely that the accused committed the crime charged.

In *Attwood v The Queen* (1960) 102 CLR 353 the court said in a joint judgment (at 359):

The expression “good character” has of course a known significance in relation to evidence upon criminal trials; for it denotes a description of evidence in disproof of guilt which an accused person may adduce. He may adduce evidence of the favourable character he bears as a fact or matter making it unlikely that he committed the crime charged. The limitations upon the description of evidence admissible under this head are the subject of the much discussed decision of *Reg v Rowton*. Probably the limitations are not observed in practice but that is not the aspect of the case that concerns us here. What does concern us is that the reasons of the judges show clearly enough that evidence of good character is regarded as really bearing on the probability or improbability of guilt. As Cockburn CJ said: “The fact that a man has an unblemished reputation leads to the presumption that he is incapable of committing the crime for which he is being tried” (at 530; 1502; 552).

[3.1325] Not relevant in all cases

In *TKWJ v The Queen* (2002) 212 CLR 124; 133 A Crim R 574; [2002] HCA 46 counsel for the accused had made the forensic decision not to call evidence of good character. The High Court held that decision was legitimate. The failure to lead such evidence did not result in a miscarriage of justice. By contrast, *AK v The Queen* [2022] NSWCCA 175 is a rare case in which a failure to call good character witnesses did result in a miscarriage of justice.

Notwithstanding some evidence of good character, doubtful relevance does not require a judge to give a full direction.

A good example is *Melbourne v The Queen* (1999) 198 CLR 1; 164 ALR 465 where the accused admitted stabbing a neighbour to death but claimed diminished responsibility.

[3.1330] Credibility of the accused

In *R v Murphy* (1985) 4 NSWLR 42; 63 ALR 53 (NSW CA and CCA – five member court) the court said in a joint judgment (at 54):

This line of authority shows that, whilst the primary significance of evidence of good character is upon the unlikelihood of guilt, there is a corollary to the effect that evidence of good character can be used with reference to credibility of the accused in his denial of the charge, and hence the unlikelihood of his guilt. The omission to give a specific direction on the credibility aspect may or may not be regarded as resulting in a miscarriage, according to the particular circumstances of the case in hand.

(This was the successful appeal by Murphy J against conviction.)

Followed in *R v Zecevic* [1986] VR 797; (1986) 21 A Crim R 225 at 810, 236 (CCA). (The High Court reversed the decision in *Zecevic v DPP (Vic)* (1987) 162 CLR 645; 25 A Crim R 163; 71 ALR 641 but not on this point, which was not the subject of appeal.)

Other cases

R v Trimboli (1979) 21 SASR 577; 1 A Crim R 73 (CCA) per King CJ at 578; 74;

M v The Queen (1998) 104 A Crim R 154 (WA CCA).

[3.1335] Good character evidence must be deliberately introduced

The introduction in court of evidence of good character must be deliberate: *R v Stantchev* (1995) 81 A Crim R 200 at 207 (Vic CCA).

In *Gabriel v The Queen* (1997) 76 FCR 279 (FCA) the prosecution had wrongly introduced bad character evidence. The defence led good character evidence in an attempt to alleviate the prejudice. Appeal against conviction allowed.

It can even be raised in out of court statements for example to police, when no further evidence on character is given in court:

R v Stalder (1981) 2 NSWLR 9 (CCA);

R v Vye [1993] 1 WLR 471; [1993] 3 All ER 241; (1993) 97 Cr App R 134;

R v Teasdale [1993] 4 All ER 290; 99 Cr App R 80;

Huges v The Queen (2013) 238 A Crim R 345; [2013] VSCA 338;

R v Aziz [1996] 1 AC 168; [1995] 3 All ER 149; [1995] 2 Cr App R 478 (HL);

Barrow v The State [1998] 2 WLR 957 (PC).

Nevertheless the judge has a residual discretion on whether to direct the jury on the use of good character of this nature, or at all: *Melbourne v The Queen* (1999) 198 CLR 1; 164 ALR 465. It depends on the circumstances of the case.

[3.1340] Defence counsel's decision on leading character evidence

Defence counsel has a duty to ask and the prosecutor to provide details of prior convictions and bad character of an accused who is considering putting the accused's own character in issue.

In *R v Hamilton* (1993) 68 A Crim R 298 (NSW CCA) Hunt CJ at CL said (at 300):

[C]ounsel for an accused ... bears a very heavy burden when advising the client in relation to the decision which the *client* must make as to whether good character should be raised. That advice can only be given properly when it is based on a *full knowledge* of what may be elicited or led by the Crown should character be raised by the accused. It is not sufficient for counsel merely to rely upon a belief based only on information provided by the accused ... [I]t is imperative that the information that the client gives be checked from a source which is reliable before any forensic step is taken to raise character ... [T]he information which should be sought is not only the details of the client's criminal record; counsel should also ask whether there is anything else known to the Crown which it would seek to elicit in the event that character were raised. The Crown Prosecutor is expected to supply that information on request. By doing so, the Crown is not thereby prevented from subsequently raising other matters where it could not reasonably have been expected to have known about them at the

time of the request for such information – subject, of course, to the usual discretion of the trial judge to exclude those other matters where their admission would lead to unfairness.

Where the Crown Prosecutor does not have that information immediately available, he or she is expected to seek that information from the police.

Further (at 301):

In the absence of such an undertaking and where inquiries are still continuing, it is imperative that, before taking any forensic step to raise character, counsel for the accused should raise his or her predicament with the trial judge in the absence of the jury. The judge will no doubt be in a stronger position to remove any obstacles in the way of such information being supplied, wherever those obstacles may lie; alternatively, the judge may stand the witness down and proceed with another pending the arrival of that information. What the reaction of the judge will be to the request for an indulgence should ordinarily depend on considerations such as the timeliness of the original request for this information, the stage at which the trial has reached and the prejudice which the accused will suffer if an indulgence is not granted.

Approved:

R v Oliverio (1993) 61 SASR 354; 70 A Crim R 5; 18 MVR 157 (CCA);

R v Robinson (2000) 111 A Crim R 388 at 392–393 [35]–[43] (NSW CCA);

R v Brownlow (2003) 86 SASR 114; 142 A Crim R 201 at [46] (CCA).

It is no part of the judge's function to raise good character of the accused when the defence does not do so: *Thompson v The Queen* [1998] AC 811 (PC).

Before the accused gives evidence the judge should rule on whether the accused could be cross-examined on character: *R v Underwood* [1998] 1 SCR 77; 155 DLR (4th) 13; 121 CCC (3d) 117 (SCC); *R v Robinson* (2000) 111 A Crim R 388 at 393 [42] (NSW CCA).

A failure to lead good evidence is not always an appealable error: *Hajar v The Queen* [2015] VSCA 233; *Smith v The Queen* [2015] VSCA 256.

[3.1345] Bad character of accused accidentally admitted

The bad character of the accused was accidentally admitted in *R v Knape* [1965] VR 469 (CCA).

The accused, who represented himself, called a witness in his defence.

“How long have you known me?”

“About 1960. I met him at Bendigo Training Prison” was the unresponsive answer.

The appeal was upheld. The court said (at 473):

However, if evidence of bad character is inadvertently and improperly given there is undoubtedly a discretion in the trial judge to determine whether or not the jury should be discharged, a discretion to be exercised according to the circumstances of the particular case. An examination of the authorities leads us to the view that unless it can be said, upon the evidence, that the irregular disclosure could not in any way affect the judgment of the jury in coming to their decision of guilty or not guilty, the trial judge should exercise his discretion in favour of the accused.

In *Arthurton v The Queen* [2005] 1 WLR 949 (PC) the defence asked questions of the good character of the accused.

The judge: Did you check his antecedent history?

Witness: I checked with Sergeant Alleyne. I know he was arrested and charged for a similar offence.

The judge declined to discharge the jury. The board advised that the appeal be allowed.

R v McLachlan [2000] VSC 215 was a murder retrial. It emerged that an internet site referred to the conviction of the accused and recited the facts wrongly. Hampel J discharged the jury.

In *R v K* (2003) 59 NSWLR 431; 144 A Crim R 468 (CCA) jurors had made internet searches about the accused. Appeal against murder conviction allowed. Authorities were examined and *McLachlan* [2000] VSC 215 (Vic, 24 May 2000, unreported) (above) approved.

[3.1350] Generally the prosecution cannot lead bad character evidence

The prosecution must not lead evidence of bad character when the accused does not give evidence and character is not in issue.

In *R v Butterwasser* [1948] 1 KB 4; [1947] 2 All ER 415; 32 Cr App R 81 Lord Goddard delivering the judgment of the Court of Criminal Appeal said (at 6; 416; 85):

[T]here is no authority for the proposition – and it is certainly contrary to what all the present members of the court have understood during the whole of the time they have been in the profession – that, where the prisoner does not put his character in issue, but has merely

attacked the witnesses for the prosecution, evidence can be called by the prosecution to prove that he is a man of bad character.

Approved:

R v de Vere [1982] QB 75; [1981] 3 All ER 473; 73 Cr App R 352 at 80, 476, 355;

R v Kino and Mete [1997] 3 NZLR 24 at 28–29 (CA).

[3.1355] When character is in issue

In *PGM v The Queen* (2006) 164 A Crim R 426 (NSW CCA) the court examined the *Evidence Act 1995*(NSW) ss 110 and 112. Barr J, with whom the others agreed, said (at 434 [35]):

The raising of good character requires a conscious decision on the part of the accused. It has been held that such evidence must be intentionally and deliberately adduced for the purpose of raising character before the Crown may be granted leave to cross-examine: *Gabriel v The Queen* (1997) 76 FCR 279. See also *R v Bartle* (2003) 181 FLR 1. So good character is not raised, for example, where a witness volunteers the evidence: *R v Redd* [1923] 1 KB 104 at 106.

In *R v Thomas* [2006] VSCA 167 Neave JA, with whom the others agreed, examined authorities and said (at [30]):

The points made above can be summarised as follows.

- (a) The test for determining whether the good character of the accused has been put in issue, is not whether a reasonable jury would think that this is the case, but whether the judge is of the opinion that it does so;
- (b) Counsels purpose in leading the evidence is relevant, but is not determinative;
- (c) The policy basis for allowing admission of evidence of bad character, where the accused has put his or her character in issue, is to ensure fairness to the prosecution by permitting that evidence to be rebutted;
- (d) At common law the fact that the accused has attacked the character of a prosecution witness does not, without more, expose him or her to admission of evidence of bad character; and
- (e) Where the threshold requirement for the admission of evidence of bad character is satisfied, the court has a discretion to exclude it.

[3.1360] Bad character of accused: principles of admission

Evidence of bad character of an accused can be given in the following circumstances:

1. By the prosecution:
 - (a) Where the acts in question are bound up with an implication that the accused is of bad character, eg an offence in gaol, an escape etc.
 - (b) As part of its proofs the prosecution leads evidence of:
 - (i) similar facts;
 - (ii) uncharged acts;
 - (iii) relationship;
 - (iv) other evidence eg a gaol confession.
2. In the running of the trial:
 - (a) the accused introduces evidence of good character which the prosecution rebuts (eg *R v Perrier (No 1)* [1991] 1 VR 697; (1990) 50 VR 122; 50 A Crim R 122 (CCA); *Evidence Act 1958*(Vic) ss 109–112);
 - (b) the accused, usually in cross-examination of witnesses, asserts an innocence of other acts which the prosecution rebuts (eg *Harriman v The Queen* (1989) 167 CLR 590; 43 A Crim R 221; 88 ALR 161);
 - (c) the accused introduces his own bad character for some special forensic reason (eg *R v Vaitos* (1981) 4 A Crim R 238 at 285–286 (Vic CCA); *R v Schneidas (No 2)* (1981) 2 NSWLR 713; 4 A Crim R 101 at 114 (NSW CCA));
 - (d) the defence casts imputations on the character of a prosecution witness, the accused gives evidence and the trial judge gives the prosecution leave to cross-examine on bad character;
 - (e) a co-accused introduces evidence of an accused's bad character.

See also

R v Weir [2006] 1 WLR 1885; [2006] 2 All ER 570; [2006] 1 Cr App R 303 (CA).

Article

David Ross QC, “One Accused's Evidence of Another's Disposition” (2006) 12 Deakin Law Review 177.

[3.1365] (Bad) character of accused introduced by prosecution

Many statutes permit the prosecution to lead evidence of bad character of the accused who gives evidence where an imputation has been made on the character of a prosecution witness.

Legislation

WA: *Evidence Act 1906* s 8(1)(e)(ii);

SA: *Evidence Act 1929* s 18(2);

Uniform Evidence Acts s 104(4)(b) (credibility);

Eng: *Criminal Evidence Act 1898* s 1(f).

Cases

In *Phillips v The Queen* (1985) 159 CLR 45; 62 ALR 479 the court said (at 49–50; 481–482):

But it has long been established that not every assertion by an accused person which reflects injuriously upon the prosecutor or witnesses for the prosecution will have the effect of bringing into play the discretion of the trial judge to allow cross-examination of him with respect to other offences or to his bad character. A mere denial, even an emphatic denial, of the existence of facts alleged against him will not be sufficient, notwithstanding that imputations on the character of the prosecutor or of a prosecution witness may necessarily be implied nor will a defence of consent to a charge of rape involve an imputation on the character of the complainant within the meaning of the section.

The evidence must be intended to put character in issue.

In *R v Fuller* (1994) 34 NSWLR 233; 74 A Crim R 415 (CCA) Hunt CJ at CL said (at 238; 420):

In my opinion, therefore, character is raised by the accused's own evidence for the purposes of s 413B only where the evidence is given with the intention of establishing good character – in the sense of asserting that, by reason of his character, he is unlikely to have committed the crime charged: *Attwood v The Queen* (1960) 102 CLR 353 (at 359); *R v Stalder* (1981) 2 NSWLR 9 (at 16).

[3.1370] Cross-examination of accused on character

A trial judge has a discretion to allow the prosecutor to cross-examine an accused on character or credit.

In *R v Anderson* [2000] 1 NZLR 667 (CA) the court following its own and English decisions said (at 676 [39]):

[E]ven where the statutory foundation is established, the trial Judge has a discretion to refuse to permit cross-examination of the accused as to previous convictions. That discretion is part of the trial judge's general power to exclude evidence which would be unfair.

In *R v McLeod* [1994] 1 WLR 1500; [1994] 3 All ER 254; [1995] 1 Cr App R 591 (CA) the court listed some propositions (at 1512–1513; 267; 604–605):

- (1) The primary purpose of the cross-examination as to previous convictions and bad character of the accused is to show that he is not worthy of belief. It is not, and should not be, to show that he has a disposition to commit the type of offence with which he is charged ...
- (2) It is undesirable that there should be prolonged or extensive cross-examination in relation to previous offences. This is because it will divert the jury from the principal issues in the case, which is the guilt of the accused on the instant offence, and not the details of earlier ones. Unless the earlier ones are admissible as similar fact evidence, prosecuting counsel should not seek to probe or emphasise similarities between the underlying facts of previous offences and the instant offence.
- (3) Similarities of defences which have been rejected by juries on previous occasions, for example false alibis or the defence that the incriminating substance has been planted and whether or not the accused pleaded guilty or was disbelieved having given evidence on oath, may be a legitimate matter for questions. These matters do not show a disposition to commit the offence in question; but they are clearly relevant to credibility.
- (4) Underlying facts that show particularly bad character over and above the bare facts of the case are not necessarily to be excluded. But the judge should be careful to balance the gravity of the attack on the prosecution with the degree of prejudice to the defendant which will result from the disclosure of the facts in question. Details of sexual offences against children are likely to be regarded by the jury as particularly prejudicial to an accused and may well be the reason why in *R v Watts* [1983] 3 All ER 101, the court thought the questions impermissible.
- (5) If objection is to be taken to a particular line of cross-examination about the underlying facts of a previous offence, it should be taken as soon as it is apparent to defence counsel that it is in danger of going too far. There is little point in taking it subsequently, since it will not normally be a ground for discharging the jury.
- (6) While it is the duty of the judge to keep cross-examination within proper bounds, if no objection is taken at the time it will be difficult thereafter to contend that the judge has wrongly exercised his discretion. In any event, this court will not interfere with the exercise of the judge's discretion save on well-established principles.
- (7) In every case where the accused has been cross-examined as to his character and previous offences, the judge must in the summing up tell the jury that the purpose of the questioning goes only to credit and they should not consider that it shows a propensity to commit the offence they are considering.

[3.1375] Judge allowed evidence of accused's bad character

Examples of imputations against a prosecution witness where the judge allowed evidence of the accused's bad character include the rape case of *Phillips v The Queen* (1985) 159 CLR 45; 62 ALR 479 in which the prosecutrix was alleged by the defence to be a dope smoker.

In *Amoe v DPP (Nauru)* (1991) 66 ALJR 29; 103 ALR 595; 57 A Crim R 244 (HC) it was alleged by the defence that the witness invented his evidence.

Note: There is a way around this. If you must, suggest the witness is biased (*R v Umanski* [1961] VR 242) or unreliable from some disability.

See also

Bias at [2.1800].

[3.1380] Accused introduces his own bad character

In rather unusual circumstances an accused will introduce evidence of his own bad character.

See also

David Ross QC, "Accused Introduces His Own Bad Character" (2003) 8 Deakin L Rev 291–303;

R v White (2003) 7 VR 442 (CA).

[3.1385] Bad character introduced by an accused cannot be confined to defence use only

In *B v The Queen* (1992) 175 CLR 599; 110 ALR 432; 63 A Crim R 225 an accused was charged with sexual offences against his daughter between December 1985 and December 1988. He denied the charges. At trial the accused put into evidence that he had previously committed acts of indecency upon the same daughter, and that he had pleaded guilty to those acts in December 1984. He was thereafter away from the family home until she invited him back. The prior indecency was introduced to show that he had returned home repentant and fallen victim to false allegations by a rebellious daughter to force him from the house. Mason CJ and Brennan and Deane JJ opined that once the evidence was admitted it tended to establish guilt and provide corroboration of the daughter's evidence. Deane J said (at 611):

It is simply not open to an accused in a criminal trial to lead evidence on the basis that the jury can use it for the purposes for which the accused leads it but cannot use it as evidence, and as corroboration of prosecution evidence, of his guilt. Nor can an accused make the use of evidence as corroboration of other prosecution evidence impermissible as a matter of law

by moulding his own case in a way which admits the truth of the evidence but seeks to gain advantage from it.

(Strangely, the decision of the Federal Court from which this appeal was brought is reported as *R v K* (1992) 34 FCR 227; 59 A Crim R 113.)

[3.1390] Prosecution rebutting accused's good character

Generally

An accused person can deliberately raise good character by cross-examination of a prosecution witness or by leading evidence. Such an issue can only be raised by the defence.

If the prosecution has evidence to the contrary, a prosecutor must seek the judge's leave to introduce that evidence in rebuttal.

In *PGM v The Queen* (2006) 164 A Crim R 426 (NSW CCA) Barr J, with whom the others agreed, said (at 434 [35]):

The raising of good character requires a conscious decision on the part of the accused. It has been held that such evidence must be intentionally and deliberately adduced for the purpose of raising character before the Crown may be granted leave to cross-examine: *Gabriel v The Queen* (1997) 76 FCR 279. See also *R v Bartle* [2003] 181 FLR 1. So good character is not raised, for example, where a witness volunteers the evidence: *R v Redd* [1923] 1 KB 104 at 106.

Legislation

Uniform Evidence Acts ss 110 and 112;

Qld: *Evidence Act 1977* s 15;

WA: *Evidence Act 1906* s 8(d);

SA: *Evidence Act 1929* s 18.

[3.1395] Judge should warn the defence

The prosecutor and judge should warn the defence of a likely application to introduce the bad character of the accused.

See *R v Gok* [1959] 2 QB 340; 2 All ER 97; 43 Cr App R 138 (CA). Devlin J, delivering the judgment of the court, said (at 349; 101; 147):

In cases of this sort where there is no hard and fast rule, some warning to the defence that it is going too far is of great importance; and it has always been the practice for prosecuting counsel to indicate in advance that he is going to claim his rights ... or for the judge to give the defence a caution.

In *R v Anderson* [2000] 1 NZLR 667 (CA) such a warning was described as “good practice” (at 678).

[3.1400] Leave of judge

Leave of the trial judge must first be sought and obtained before cross-examination of an accused on his character or prior convictions: *Phillips v The Queen* (1985) 159 CLR 45; 62 ALR 479.

This arises where an accused has given evidence of his own good character or the nature and conduct of the defence is such as to involve imputations on the character of the prosecutor or of a witness for the prosecution.

In jurisdictions where *Uniform Evidence Acts* apply, a judge considering the granting of leave to cross-examine the accused on character must take account of s 192: *Stanoevski v The Queen* (2001) 202 CLR 115; 177 ALR 285; 118 A Crim R 247.

In *Matusevich v The Queen* (1977) 137 CLR 633; 15 ALR 117 a prisoner was moved to a cell with Messrs Matusevich and Thompson, and later was found killed by blows from an axe. At the trial of Mr Matusevich for murder, evidence was given that Mr Thompson was insane. Mr Matusevich gave evidence that he had not committed crimes of violence. The prosecutor, without seeking leave, cross-examined to show that he had previously escaped and had committed house-breakings which were offences of a violent nature. The appeal was allowed. Aickin J gave the leading judgment. His Honour said (at 655):

It is sufficient to say that if such cross-examination is permissible at all, it should not be allowed in the absence of prior permission from the trial judge and that cases where it may prove to be proper to grant such permission are likely to be extremely rare.

In *R v Sarek* [1982] VR 971 (CCA) the accused was charged with heroin trafficking. He gave evidence at trial saying in chief that he had been in trouble with the police three or four times, but never over drugs. Without leave, the prosecutor cross-examined to show all his convictions and sentences. The solicitor appearing for the accused declined the judge's invitation to apply

for a discharge of the jury. One ground of appeal was improper cross-examination. (Another was incompetence of the representation.) McInerney J delivered the leading judgment. He referred to *Matusevich* (1977) 137 CLR 633; 15 ALR 117 and said (at 980):

It is clear from the decision of the High Court in that case that the cross-examination by the Crown prosecutor, without having first obtained leave of the trial judge so to do, was not a mere irregularity: it involved the admission of inadmissible evidence. By cross-examining on those prior convictions without having obtained the leave of the learned trial judge to do so counsel for the prosecution deprived counsel for the accused of the opportunity of submitting to the learned trial judge that such cross-examination should not be permitted and deprived the trial judge of an opportunity of exercising his discretion as to whether or not he should permit that cross-examination.

The appeal was allowed.

In the Northern Territory where the *Evidence Act* did not require the judge's leave before such cross-examination, the leave was still required: *R v Darby* (1993) 3 NTLR 74; 113 FLR 66 (Martin CJ).

The same position obtains in South Australia: *R v Brownlow* (2003) 86 SASR 114; 142 A Crim R 201 at [37]–[44] (CCA).

In *R v Kino and Mete* [1997] 3 NZLR 24 (CA) Eichelbaum CJ delivering the judgment of the court said (at 9):

Leave to cross-examine an accused about bad character should be sought in all instances, however obvious the case may appear to the prosecution: *Phipson on Evidence* (13th ed 1982) at 237.

In each of the above cases, a co-accused giving evidence was wrongly cross-examined about the bad character of the accused who did not give evidence. Appeals allowed.

[3.1405] Granting of leave

In *Matusevich v The Queen* (1977) 137 CLR 633; 15 ALR 117 Aickin J said (at 655; 133):

[C]ases where it may prove proper to grant such permission are likely to be extremely rare.

In *R v Crawford* [1965] VR 586 (CCA) Smith J said (at 591):

The mere fact that some pieces of evidence are elicited or some questions asked, by counsel for the accused which have some tendency to show the accused in a good light or to suggest good conduct on his part, does not create a prima facie case for the exercise of the discretion to allow cross-examination of the accused under the sub-section. Such cross-examination is to be allowed only when the circumstances are such as to provide a compelling need to allow it in the interests of justice. As I read the cases, their assertion of the necessity for the circumstances to be of an exceptional nature is put in the broadest way. It goes beyond the situation in which the matters founding the application for leave to cross-examine are relevant to the issues in the case. Whether those matters be relevant to the issues or not, the discretion to allow the cross-examination should be exercised only in exceptional circumstances.

Applied:

R v McCaul & Palmer [1983] 2 VR 419; (1983) 9 A Crim R 70 at 426, 78–79 (CCA).

[3.1410] Co-accused's cross-examination to show accused is of bad character

When an accused has given evidence against a co-accused, leave of the judge must be obtained before there can be cross-examination of the accused to show he is of bad character: *R v Stantchev* (1995) 81 A Crim R 200 at 204–207 (Vic CCA).

In England there is no discretion: *Murdoch v Taylor* [1965] AC 474; [1965] 1 All ER 406; 49 Cr App R 119 (HL); *Lui Mei-Lin v The Queen* [1989] 1 AC 288; [1989] 1 All ER 359; (1988) 88 Cr App R 296 (PC). In Australia it seems there is.

The appropriate submissions, for example for separate trials, must be put to the trial judge if it is sought by one accused to give evidence but avoid the risk of his bad character being put by a co-accused. This point arose in *R v Ditroia & Tucci* [1981] VR 247 (CCA). Mr Ditroia had priors but wanted to give evidence. The court said (at 252):

Ditroia was aware before his trial of the matters which form the foundation for this argument. His counsel either knew, or should have known, of such matters. It is impermissible to withhold an argument from presentation at the time when reliance should be placed on it and then in appellate proceedings, if the trial result is adverse, to raise the point for the first time.

[3.1415] Bad character of victim

Bad character of victim is admissible if relevant (see **Relevance** at [18.2400]).

In *R v Anderson* (2000) 1 VR 1; 111 A Crim R 19 (CA) Winneke P giving the leading judgment said (at 12; 30 [30]):

[I]t would be contrary to reason and common sense to exclude evidence of previous violent acts by the deceased towards the accused person, or others, if such conduct had a relevance to the issues at trial (see *Re Knowles* [1984] VR 751).

In *R v Ellem (No 1)* [1995] 2 Qd R 542 Lee J ruled (at 544):

Quite clearly evidence of this kind and in particular evidence of the deceased's prior relevant conduct and disposition towards the accused is admissible if it shows the accused's state of mind at the time of the incident in question and if it explains in context his conduct in acting as he did. It may clearly be relevant to the defence of self-defence where the belief of the accused person on reasonable grounds that he could not otherwise preserve himself from death or grievous bodily harm, unless he acted as he did, is an essential feature of the defence.

In *Re Knowles* [1984] VR 751 (CCA) the accused had killed the woman victim after what he said was an unexplained unprovoked knife attack on him by her. Not called at trial were two men, previously close to her, who would have recognised this same characteristic in the victim. His appeal against his murder conviction failed and it did not refer to the two witnesses. The petition of mercy succeeded. It was held that the accused did not have to know of this violent propensity of the victim before the evidence was called. It was relevant because it tended to support self defence.

In *R v Masters* [1987] 2 Qd R 272; (1986) 24 A Crim R 65 (CCA) the accused was convicted of murder. He had gone to the victim to find out whether the victim had raped Mr Masters' wife by having intercourse with her when she was drunk. The accused picked up a piece of wood on the way because he had been told the victim was a violent man, and believed it. He argued that he had acted in self defence when the victim picked up a tomahawk. The trial judge excluded the evidence of what the victim had been told and the evidence of the persons who told him of the victim's violence. It was held that the evidence was wrongly excluded. The appeal was allowed.

The test of admissibility is relevance. In *R v PP* (2002) 135 A Crim R 575 (Vic, Nettle J) the accused was charged with murder. His Honour ruled in the convictions for violence of the victim as relevant to self defence and provocation. The non-violent convictions were excluded.

See also

R v Cakovski (2004) 149 A Crim R 21 (NSW CCA);

R v Mogg (2000) 112 A Crim R 417 (Qld CA) per Thomas JA at 432 [79].

[3.1420] Bad character of co-accused

The bad character of a co-accused is admissible if relevant.

In *R v Mussone* [2007] 1 WLR 2467 (CA) the court held a trial judge has no power to prevent an accused from leading evidence of the bad character of a co-accused on the ground of unfairness to the co-accused.

In *R v Gibb & McKenzie* [1983] 2 VR 155; (1982) 7 A Crim R 385 (CCA) Mr McKenzie alleged duress by Mr Gibb. The charge was murder. The trial judge curtailed the evidence showing Mr Gibb's violence, and his reputation for violence. The appeal was allowed: see 168–171; 398–402.

The decision in *Gibb & McKenzie* followed *R v Lowery and King (No 3)* [1972] VR 939. The court said (at 168–169; 399):

In support of the contention that the learned judge's ruling was erroneous, counsel relied first upon the statement by this court in *R v Lowery & King (No 3)* [1972] VR 939, at pp 944–5 where the court said:

It is, however, established by the highest authorities that in criminal cases the Crown is precluded from leading evidence that does no more than show that the accused has a disposition or propensity or is the sort of person likely to commit the crime charged ...

A little later the court said:

It is, we think, one thing to say that such evidence is excluded when tendered by the Crown in proof of guilt, but quite another to say that it is excluded when tendered by an accused in disproof of his own guilt. We see no reason of policy or fairness which justifies or requires the exclusion of evidence relevant to prove the innocence of an accused person.

These passages were expressly approved by the Privy Council: see *Lowery v R* [1974] AC 85, at 102. The passage last quoted is followed by:

That evidence may, of course, show disposition or propensity of a co-accused to commit the crime charged, but this is also the case where such evidence is admissible when adduced by the prosecution as relevant to prove some such issue as intent, or identity, or to rebut accident or mistake.

In *R v Mathers* (1988) 38 A Crim R 423 (Vic CCA) a car was speeding and an occupant of it killed. The driver Mr Kavanagh said he was being chased by a car driven by Mr Mathers who had earlier threatened him. Both the drivers were charged. On behalf of Mr Kavanagh evidence was led of Mr Mathers' bad character and previous convictions.

Mr Kavanagh was acquitted. Mr Mathers was convicted and appealed. The appeal was dismissed. The evidence was properly led. The solution might have been for Mr Mathers to apply for a separate trial, but he had not done so.

[3.1425] Bad character of a witness

In *R v Hanrahan* (1964) 87 WN (NSW) 458; [1967] 2 NSWLR 717 (CCA) Manning J said (at 460; 718):

I think it undoubted ... that it is permissible with a view to impeaching a witness' credit to bring forward evidence of the general reputation for untruthfulness of a witness although not of particular facts, from which the inference of untruthfulness well might be drawn.

In *R v Richardson* [1969] 1 QB 299; [1968] 2 All ER 761; (1968) 52 Cr App R 317 (CCA) the court said (at 304–305; 764–765; 323):

It was considered in detail by Lord Goddard CJ in *R v Gunewardene* [1951] 2 KB 600, which in this respect was unaffected by and indeed approved of in *Toohey v Metropolitan Police Commissioner* [1965] AC 595. The legal position may be thus summarised:

1. A witness may be asked whether he has knowledge of the impugned witness's general reputation for veracity and whether (from such knowledge) he would believe the impugned witness's sworn testimony.
2. The witness called to impeach the credibility of another witness may also express his individual opinion (based upon his personal knowledge) as to whether the latter is to be believed upon his oath and is not confined to giving an opinion based merely on general reputation.
3. But, whether his opinion as to the impugned witness's credibility be based simply upon the latter's general reputation for veracity or upon personal knowledge, the witness cannot be permitted to indicate during his examination-in-chief the particular facts, circumstances or incidents which formed the basis of his opinion, although he may be cross-examined as to them.

Approved:

Goldsmith v Sandilands (2002) 76 ALJR 1024; 190 ALR 370 per McHugh J at [35];

Bull v The Queen (2000) 201 CLR 443; 110 A Crim R 562; 171 ALR 613 per McHugh, Gummow and Hayne JJ at 455 [46];

Palmer v The Queen (1998) 193 CLR 1; 96 A Crim R 213; 151 ALR 16 per McHugh J at 21 [48];

Bell v The Queen (1985) 7 FCR 555; 63 ALR 433 (FCA) per Wilcox and Miles JJ at 563; 440–441;

Note that the common law probably has been abrogated by *Uniform Evidence Acts* ss 102 and 103.

See also

Graham v The Queen (1998) 195 CLR 606; 157 ALR 404; 102 A Crim R 438.

[3.1430] Judge's direction on accused's good character

In *Melbourne v The Queen* (1999) 198 CLR 1; 164 ALR 465 the High Court held by a majority of three to two that a judge is not obliged to direct the jury on how evidence of the accused's good character may be used. McHugh, Gummow and Hayne JJ said further that there was no issue at the trial on whether the accused had told the truth out of court, so the jury would not have been aided by a direction.

The good character of a witness for the Crown is not to be contrasted with the good character of the accused.

In *R v Trimboli* (1979) 21 SASR 577; 1 A Crim R 73 (CCA), King CJ said (at 578; 74):

1. It is desirable in all cases in which there is evidence as to the accused's good character that a direction be given as to the use to which that evidence should be put.
2. No particular form of words is necessary, but the direction should convey to the jury that they should bear in mind the accused's previous good character when considering whether they are prepared to draw from the evidence the conclusion of the accused's guilt. They should bear it in mind as a factor affecting the likelihood of the accused committing the crime charged. The judge may add, if he thinks it appropriate in the particular case, that the jury should consider the accused's previous good character in assessing the credibility of any explanations given by him and, when he has given evidence, his credibility as a witness.
3. The judge is, of course, at liberty to remind the jury that people do commit crimes for the first time and that evidence of previous good character cannot prevail against evidence of guilt which they find to be convincing notwithstanding the accused's previous character. This last consideration may apply with particular force to certain

types of crime and the judge is, of course, free to point that out to the jury if he sees fit.

In *R v Warastra* (1991) 54 A Crim R 351 (Vic CCA) the court said (at 356):

In this State, for many years, good character evidence has almost without exception been followed by an appropriate direction as to the use which the jury might properly make of that evidence. Since *Zecevic* [1986] VR 797; 21 A Crim R 225, the usual directions have expanded. In our opinion, generally speaking, such a direction should be given. It would be only in a rare case, where the accused gives evidence on oath, and his credibility is of crucial importance, that an omission to give such a direction could be justified.

(The reference to *R v Zecevic* [1986] VR 797; (1986) 21 A Crim R 225 (CCA) means that a direction on good character includes that character goes to credibility. See above Credibility of the accused.)

Applied:

R v Martin (1996) 65 SASR 590; 86 A Crim R 198 (CCA).

See also

Tuckiar v The King (1934) 52 CLR 335 at 341, 345;

R v Lapuse [1964] VR 43 at 45–46 (CCA).